

HOUSE BILL 347

By Hurt

AN ACT to amend Tennessee Code Annotated, Title 36;
Title 37 and Title 39, relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 36-1-102(1)(D), is amended by
inserting the following before the period:

, but does not include the failure to meet the needs of a child solely due to financial
hardship unless reasonable material resources such as cash assistance, safe and stable
housing, or tangible goods have been offered to and refused by the parent

SECTION 2. Tennessee Code Annotated, Section 36-1-113(i)(1), is amended by adding
the following as a new subdivision:

(U) The individual economic circumstances of each parent;

SECTION 3. Tennessee Code Annotated, Section 36-1-113, is amended by deleting
subdivision (i)(2) and substituting:

(2) When considering the factors set forth in subdivision (i)(1):

(A) The court must not weigh a factor against a parent solely due to
financial hardship unless reasonable material resources such as cash
assistance, safe and stable housing, or tangible goods have been offered to and
refused by the parent; and

(B) The prompt and permanent placement of the child in a safe
environment is presumed to be in the child's best interest.

SECTION 4. Tennessee Code Annotated, Section 37-1-102(b)(1), is amended by designating the current language as subdivision (b)(1)(A) and adding the following as a new subdivision (b)(1)(B):

(B) "Abuse" does not exist when the alleged harm is solely due to a parent or guardian's financial hardship, unless reasonable material resources such as cash assistance, safe and stable housing, or tangible goods have been offered to and refused by the parent or guardian;

SECTION 5. Tennessee Code Annotated, Section 37-1-102(b)(13), is amended by designating the current language as subdivision (b)(13)(A) and adding the following as a new subdivision (b)(13)(B):

(B) "Dependent and neglected child" does not mean a child who meets any of the criteria listed in subdivision (b)(13)(A) solely due to a parent or guardian's financial hardship unless reasonable material resources such as cash assistance, safe and stable housing, or tangible goods have been offered to and refused by the parent or guardian;

SECTION 6. Tennessee Code Annotated, Section 37-1-102(b)(27), is amended by designating the current language as subdivision (b)(27)(A) and adding the following as a new subdivision (b)(27)(B):

(B) "Severe child abuse" does not include situations that meet any of the criteria listed in subdivision (b)(27)(A) solely due to a parent or guardian's financial hardship unless reasonable material resources such as cash assistance, safe and stable housing, or tangible goods have been offered to and refused by the parent or guardian;

SECTION 7. Tennessee Code Annotated, Section 37-1-147(a), is amended by inserting the following language before the period:

; provided, that the juvenile court is not authorized to terminate the rights of a parent or guardian solely due to a parent or guardian's financial hardship unless reasonable

material resources such as cash assistance, safe and stable housing, or tangible goods have been offered to and refused by the parent or guardian

SECTION 8. Tennessee Code Annotated, Section 37-1-157, is amended by deleting subsection (d) and substituting:

(d) Subsection (a) does not impose criminal liability:

(1) Upon a mother based solely upon her act of delivering a newborn infant to a facility pursuant to § 68-11-255; or

(2) Upon a parent or guardian solely due to a parent or guardian's financial hardship unless reasonable material resources such as cash assistance, safe and stable housing, or tangible goods have been offered to and refused by the parent or guardian.

SECTION 9. Tennessee Code Annotated, Section 37-1-166(h), is amended by adding the following as a new subdivision:

(3) Ameliorate conditions of financial hardship outside of the parent or guardian's financial ability to do so, unless reasonable material resources such as cash assistance, safe and stable housing, or tangible goods have been offered to and refused by the parent or guardian;

SECTION 10. Tennessee Code Annotated, Section 39-15-401, is amended by adding the following as a new subsection:

(j) For purposes of this section, abuse or neglect does not exist when the alleged harm is solely due to a parent or guardian's financial hardship unless reasonable material resources such as cash assistance, safe and stable housing, or tangible goods have been offered to and refused by the parent or guardian.

SECTION 11. This act takes effect July 1, 2025, the public welfare requiring it.